

Legal Compliance Guidelines

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Purpose

This document provides general legal compliance guidance for reviewing vendor agreements.

Governing Law

Contracts should specify a governing law consistent with the jurisdictions in which the company operates. Governing law clauses referencing an approved jurisdiction (for example, Illinois, Delaware, or New York) are considered compliant.

Dispute Resolution

Company policy favors mediation followed by binding arbitration over direct litigation, in order to reduce legal costs and resolution time.

Confidentiality Survival

Confidentiality obligations should survive termination of the agreement for a minimum of two years, and three years is preferred for sensitive engagements.

Risk Rating Guidance

A missing mandatory clause should generally be rated as High risk. An incomplete or ambiguous clause should generally be rated as Medium risk, unless it relates to data privacy or security, in which case it should also be rated High risk.

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